

Calendar Line 13

Danea Burleson vs Bay Area Ketamine Center, Inc. et al.
25CV469611

BACKGROUND

Plaintiff, a former patient and former employee of Defendant, moves for a protective order restricting Defendant's communications with Plaintiff and Plaintiff's counsel, and further seeks sanctions under Code of Civil Procedure sections 128.5, 128.7, and 2023.030. Defendant, in propria persona, opposes and argues the motion is procedurally improper and must proceed under Code of Civil Procedure section 527.6.

LEGAL STANDARD

Defendant's reliance on Code of Civil Procedure section 527.6 is misplaced. That statute governs standalone civil harassment restraining order proceedings and is not a prerequisite to issuance of a case-management protective order within pending civil litigation. The Court has broad authority to control proceedings and regulate litigant conduct under Code of Civil Procedure sections 128, subdivision (a)(3) and (a)(5), and 187, as well as authority to issue protective orders to prevent harassment, annoyance, and undue burden, including under section 2017.020 where appropriate. Defendant's procedural objection is therefore overruled.

ANALYSIS

The Court finds good cause for a narrowly tailored protective order. The record reflects ongoing direct communications from Defendant to Plaintiff despite Plaintiff's representation by counsel, including communications that are not necessary to the litigation and are reasonably characterized as harassing or inappropriate in tone. The Court finds that restrictions on direct party-to-party contact are necessary to preserve orderly litigation and protect Plaintiff from improper contact.

The Court further finds it appropriate to regulate Defendant's communications with Plaintiff's counsel to the extent such communications occur, limiting them to those expressly permitted by law or court order and requiring that any such communications be professional and limited to legitimate litigation matters.

SANCTIONS

Plaintiff's request for sanctions under Code of Civil Procedure sections 128.5, 128.7, and 2023.030 is denied without prejudice. While the Court does not impose sanctions at this time, the Court expressly admonishes Defendant that the conduct at issue is improper; future violations may result in sanctions or other corrective orders.

IT IS HEREBY ORDERED:

1. Defendant shall not directly contact Plaintiff in any manner, including email, telephone, text message, written correspondence, or in person. All communications shall be directed through Plaintiff's counsel.

2. Defendant shall not contact Plaintiff's counsel directly except as expressly permitted by law or court order. Any permitted communications shall be limited to legitimate litigation matters and conducted in a professional manner.
3. Defendant is ordered to cease and desist from harassing, threatening, intimidating, or abusive communications directed to Plaintiff or Plaintiff's counsel in connection with this action.
4. Plaintiff's request for sanctions is DENIED WITHOUT PREJUDICE.
5. Defendant is admonished that future violations of this order may result in sanctions or other appropriate court action.
6. This order is issued pursuant to Code of Civil Procedure sections 128, subdivision (a)(3) and (a)(5), 187, and 2017.020 (to the extent applicable), and remains in effect pending further order of the Court.

Plaintiff to prepare the order accompanied by Form EFS-020 within 7 days of hearing.

Calendar Line 14

Case Name: *Immigration Resettlement and Cultural Center, Inc. v. Cuong Nguyen, et al.*

Case No.: 25CV472916

Plaintiff Immigration Resettlement and Cultural Center, Inc. (“Plaintiff,” or “IRCC”) alleges Defendants Cuong Nguyen, Nhut Ho, Tue Quang Phan, Hong Cao, and My Linh Pham, and Does 1 through 50 inclusive (collectively, “Defendants”) improperly represented themselves as the Board of Directors of IRCC, leading to the continued closure of the Viet Museum, the disruption of funding, and harm to the community for which no adequate remedy at law exists. Presently before the court is Defendants’ demurrer to Plaintiff’s First Amended Complaint (“FAC”).

As discussed below, the court **OVERRULES** the demurrer.

I. BACKGROUND

IRCC was founded in 1980 as a nonprofit community-based organization located in San Jose, California. (FAC, ¶ 5.) IRCC provides services and programs to the community in Santa Clara County, primarily to persons of Vietnamese origin, and also runs the Viet Museum in San Jose History Park. (FAC, ¶¶ 5, 6.)

Loc Vu (“Vu”) was the founder of the IRCC and, until January 16, 2025, the President and Executive Director. (FAC, ¶ 7.) The bylaws of the IRCC, specifically Article III, Section 3, entitled “Method to Elect Board of Directors,” prescribe that each year, at the annual meeting, the members vote on the Board of Directors. (FAC, ¶ 8.) The same bylaws state in Section 4 that the President must preside over every meeting of the members and the Board of Directors of the IRCC. (FAC, ¶ 9.) In June 2024, Vu informed Defendants that Santa Clara County had given IRCC a sizable grant of approximately \$55,000.00. (FAC, ¶¶ 10; 15.) Vu also informed Defendants that he, as Executive Director, did not think Defendant Hong Cao (“Cao”) was the right person to take over for him and he wanted to place Cao on leave for two months from his position as director of operations of the Viet Museum. (*Ibid.*) Vu also told Defendants that he “strongly objected to actions the group wanted to take that would violate the By-Laws and dishonor the organization.” (*Ibid.*)

Defendants began meeting in secret, without Vu, in violation of IRCC’s bylaws, and decided to open a new bank account to hold the grant funds without Vu’s knowledge. (FAC, ¶¶ 11, 12.) On July 19, 2024, Cao filed a Statement of Information with the California Secretary of State, listing himself and others² as directors without lawful election by the membership. (FAC, ¶ 13.) Cao and Defendant Nhut Ho (“Ho”) “submitted to Santa Clara County accusations” that Vu was misappropriating or mismanaging funds. (*Ibid.*)³

On August 16, 2024, Defendant Cuong Nguyen (“Nguyen”) informed the County of Santa Clara⁴ that “the existing IRCC Bank of America account had been closed and directed

² The FAC does not specify who the “others” listed as directors of IRCC in the Statement of Information are.

³ The FAC does not identify the County representatives or entities that Cao and Ho corresponded with or the context of that conversation.

⁴ Again, it is unclear who Nguyen communicated to in the County or the context of that conversation.

that \$55,000 in grant money be deposited into a new Cathay Bank account under Defendants' control." (FAC, ¶ 15.) However, the Bank of America account had not been closed and had long been used for County grant transfers. (*Ibid.*) The Defendants' misrepresentation created confusion and risked forfeiture of the grant, and "[a]t the request of Supervisor Cindy Chavez, a meeting was convened and a compromise was reached: the grant money would be deposited in the Bank of America account, and three of the Defendants were added as signers to the B of A account."⁵ (*Ibid.*)

The \$55,000 grant was deposited on October 18, 2024, after which "the Defendants again demanded that the funds be transferred to their Cathay Bank account. In response, Mr. Vu, in his role and authority as President and Executive Director, removed the three co-signers from the B of A account on December 12, 2024." (FAC, ¶ 16.)⁶

On December 20, 2024, Defendants contacted History San Jose ("HSJ"), a nonprofit corporation designated by the City of San Jose to operate and maintain History Park, where IRCC operated the Viet Museum. (FAC, ¶¶ 6, 22.) Defendants told HSJ that Defendants were the rightful representatives of the IRCC. (FAC, ¶ 22.) As a result, HSJ closed the museum on December 23, 2024, and stated it would not allow anyone back in until it was legally determined who was the proper Board of Directors of the IRCC. (FAC, ¶ 23.)

On December 31, 2024, Cao and Ho "terminated Vu as Executive Director of IRCC." (FAC, ¶¶ 13, 14.) Vu was not terminated as President of IRCC. (FAC, ¶ 14.)

On January 11, 2025, Vu called a special meeting of members to elect a new Board, seemingly because "many of the alleged members of the Board, including the Defendants, were not legitimate IRCC Board members since they were never voted in by the membership at an annual meeting." (FAC, ¶ 17.) Vu requested the attendance of all members on the IRCC membership lists that have been approved as members and gave specific notice to Defendants of this special meeting and encouraged them to participate in the election. (FAC, ¶ 18.) The Defendants did not attend the meeting. (FAC, ¶ 19.) The IRCC membership elected a new Board on January 11, 2025. (FAC, ¶ 20.)

On January 16, 2025, at the first meeting of the new Board, Vu resigned from his positions as President and Executive Director and Quinn Tran was elected to replace him.⁷ (FAC, ¶ 20.) On February 26, 2025, IRCC held the annual meeting required under the bylaws. (FAC, ¶ 21.) At the annual meeting, the members re-elected the same Board members who were elected in January at the special meeting. (*Ibid.*)

Based on the foregoing, IRCC initiated this action on August 14, 2025. IRCC then filed the First Amended Complaint on October 17, 2025. IRCC seeks "a judicial determination and declaration that the current Board is duly elected pursuant to the IRCC By-Laws and statements by the Defendants are invalid and of no force and effect...Unless Defendants are enjoined from claiming they are legitimate members of the Board of Directors, Plaintiff will

⁵ The FAC does not indicate who was at this meeting.

⁶ The FAC does not state who Defendants directed their demand to.

⁷ The FAC does not make clear how this relates to the earlier allegation that two of Defendants "attempted to suspend" and then "terminated" Vu from his role as Executive Director on December 31, 2024. (FAC, ¶¶ 13, 14.)

suffer great and irreparable injury due to the continued closure of the Viet Museum, the disruption of funding, and the harm to the community for which no adequate remedy at law exists.” (FAC, ¶¶ 26, 27.) Defendants demurred on November 18, 2025.

II. DEMURRER

A. Legal Standard

The function of a demurrer is to test the legal sufficiency of a pleading. (*Trs. Of Capital Wholesale Elec. Etc. Fund v. Shearson Lehman Bros.* (1990) 221 Cal.App.3d 617, 621.) Consequently, “[a] demurrer reaches only to the contents of the pleading and such matters as may be considered under the doctrine of judicial notice.” (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 732, internal citations and quotations omitted; see also Code Civ. Proc., § 430.30, subd. (a).) “It is not the ordinary function of a demurrer to test the truth of the plaintiff’s allegations or the accuracy with which he describes the defendant’s conduct. ... Thus, ... the facts alleged in the pleading are deemed to be true, however improbable they may be.” (*Align Technology, Inc. v. Tran* (2009) 179 Cal.App.4th 949, 958, internal citations and quotations omitted.)

In ruling on a demurrer, the allegations of the complaint must be liberally construed, with a view to substantial justice between the parties. (*Glennen v. Allergan, Inc.* (2016) 247 Cal.App.4th 1, 6.) Nevertheless, while “[a] demurrer admits all facts properly pleaded, [it does] not [admit] contentions, deductions or conclusions of law or fact.” (*George v. Automobile Club of Southern California* (2011) 201 Cal.App.4th 1112, 1120.)

B. Analysis

At the outset, the court notes that in its Opposition to Defendants’ Demurrer, Plaintiff requests judicial notice of the following: (1) a complaint subsequently filed by Defendant in Santa Clara County Superior Court entitled *Cuong Nguyen, et al. v. Immigrant Resettlement and Cultural Center, Inc., et al.*, Case No. 25CV477278, filed October 10, 2025; (2) Defendants’ Case Management Statement in the present action, filed February 18, 2026; and (3) IRCC’s bylaws, corporate governance documents, and operative governing instruments referenced in and attached the FAC. The court grants each request for judicial notice. All three items are proper subjects of judicial notice because each is a court record within the meaning of Evidence Code section 452, subdivision (d). (Evid. Code, § 452, subd. (d) [judicial notice may be taken of “records of... any court of this state[.]”]; see also Evid. Code § 453 [judicial notice compulsory where adverse party has advance notice and sufficient information furnished to the court regarding the request].) Nevertheless, the complaint and the Case Management Statement referencing that complaint filed in another docket do not have any bearing on the matter currently before the court, which is the demurrer in *IRCC v. Cuong Nguyen*. IRCC’s bylaws, corporate governance documents, and operative governing instruments were referenced in and attached to the FAC and thus are also a court record within the meaning of Evidence Code section 452, subdivision (d). The request for judicial notice is granted.

Defendants demur on the basis that those suing on behalf of IRCC lack standing and therefore IRCC lacks capacity to sue. Defendants argue that according to the FAC, the election of the most recent Board of Directors failed to comply with IRCC’s own bylaws; thus, the new Board of Directors elected at that time do not have the authority to act as IRCC’s Board of